

CITY COUNCIL MINUTES

October 18, 2010

The Cadillac City Council met in a regular meeting on Monday, October 18, 2010, at 7:00 p.m. in the Council Chambers of the Municipal Complex, 200 N. Lake Street, Cadillac, Michigan.

COUNCIL PRESENT: Schippers, Mellema, Spoelman, Stevens, Mayor Barnett

COUNCIL ABSENT: None

Staff Present: Peccia; Barbieri; Homier, Dietlin, Kent, Johnson; Benson

Mayor Barnett called the regular Cadillac City Council meeting to order at 7:05 p.m.

APPROVAL OF AGENDA

2010.22 Agenda approved as presented

Motion was made by Stevens and supported by Mellema to approve the agenda as presented.
Motion unanimously approved.

PUBLIC COMMENTS

There were no public comments.

CONSENT AGENDA

2010.230 Consent agenda approved as presented

Motion was made by Schippers and supported by Spoelman to approve the city council as presented.
Motion unanimously approved.

PROCLAMATIONS

PUBLIC HEARINGS

At 7:09 p.m., Mayor Barnett opened a public hearing to consider the adoption of a resolution approving an application for an Industrial Facilities Tax Exemption Certificate for Cadillac Casting, Inc. and the Letter of Agreement which would approve the IFT certificated in the amount of \$821,530.00 for a period of 12 years. There was no public comment. The public hearing closed at 7:11 p.m.

2010.231 Cadillac Casting IFT and Letter of Agreement approved, Resolution No. 1949

Motion was made by Stevens and supported by Schippers to adopt Industrial Facilities Tax Exemption Resolution No. 1949 approving an IFT application for new equipment in the amount of \$821,530.00 for a period of twelve years and to accept the Letter of Agreement.

Motion unanimously approved.

At 7:13 p.m., Mayor Barnett opened a public hearing to continue the discussion of the request to adopt the Solid Waste Management Plan Amendment. City Manager Marcus Peccia referred to the letter of request from Wexford County Administer Ken Hinton to approve the plan amendment. Chuck Barbieri, Foster Swift Collins and Smith, said the county has negotiated with American Waste to drop the flow control requirement. He said this is significant because the city has been against flow control from the beginning. The Solid Waste Management Plan Amendment would still provide for flow control to protect the county in case the sale does not go through. If the sale does happen, the county would amend the amend the Solid Waste Management Plan again to eliminate flow control. The sale could take up to a year. However, there will be different members on the Board of Commissioners and there is no guarantee they would amend the plan to eliminate flow control. Barbieri said one option is to adopt the plan now and trust the new board would amend the plan after the sale. Another option (which has not been discussed with the county) is to amend the plan now with the provision that would trigger elimination of flow control ~~now in the future upon the sale of the landfill~~. The amendment would be acted upon by the current Board of Commissioners. ~~which would require the current plan to undergo amendments~~. Or *another option is to ask the county to amend the plan to eliminate flow control within a set time period, regardless of the sale or not.* He reminded council that there would still be the reduced tipping fees.

Steve Essling of Waste Management said he wanted to “clean up” something said at the October 4 meeting. He said Waste Management owns Glens landfill in Lelanau County and explained where their waste goes. He said there is no flow control in Lelanau County.

2010.227 Moratorium imposed on issuance of permits, licenses or approval for sale or dispensation of medical marijuana approved, Ordinance No. 2010-13

Motion was made by Schippers and supported by Stevens to approve Resolution No. 1947 which adopts Ordinance No. 2010-13 to impose a six (6) month moratorium, with an aside recommendation that as new information is received, action may be taken sooner than six months, on the issuance of permits, licenses or approval for the sale or dispensation of medical marijuana to give the city time to decide how to regulate it.

Motion unanimously approved.

COMMUNICATIONS

2010.228 Public hearing set for Cadillac Casting, Inc. IFT request, Resolution No. 1948

Motion was made by Stevens and supported by Mellema to adopt Industrial Facilities Tax Resolution No. 1948, setting a public hearing for October 18, 2010 to consider the request from Cadillac Casting, Inc. for an IFT certificate in the amount of \$821,530.00.

Motion unanimously approved.

CITY MANAGER’S REPORT

On the recommendation from city council at the October 4, 2010 city council meeting, letters were sent and follow-up phone calls were made to all Wexford County townships and municipalities, inviting them to a public forum on Wexford County’s Solid Waste Plan

Amendment.

City Manager Peccia opened the public forum by telling everyone that just today he had received a formal request from the county to consider the Solid Waste Plan Amendment.

Chuck Barbieri, the city's environmental consultant from Foster Swift Collins & May, explained the amendment approval process. For the plan to move forward, at least 14 communities must approve the plan. Once approved, it would go to the MDNRE for approval. Even though the city has one-third of the population of Wexford County, they still have only one vote. He said that the plan amendment is intended to control disposal costs by expanding the waste shed and provides for other counties to dispose of waste. The city's historical position is on the record as wanting market rates and for the rates to be competitive. The city wants a level playing field. The plan amendment does not provide for market rates, but does appear to lower the tipping rates to \$39/ton. However, the city does not have the right to export waste if the rates do not stay reduced. Mr. Barbieri feels that the sale and plan amendment requires careful review. Council Member Stevens would like to compare the current plan with the proposed plan.

Ken Hinton, Wexford County Administrator addressed council with a PowerPoint presentation regarding what is encompassed in the plan amendment. He explained that the plan is a document that is subject to change periodically. The plan amendment reflects the current needs of the county. He then gave a presentation on the six amendments in the plan. The first is imports and export authorization. The plan would expand the waste shed to increase the amount of solid waste coming into the landfill resulting in lower tipping fees. The second amendment is updating the description of the facility they have. The facility has been expanded for increased capacity. The third amendment cleans up the language of the current plan regarding waste haulers. The fourth amendment applies to new disposal areas in the county. If successful in approving the solid waste plan amendment and selling the landfill and more waste is brought in, the life of landfill will decrease. The fifth amendment is to allow for enforceable local ordinances and regulations. The sixth amendment updates the description of capacity available. He encouraged approval of the Solid Waste Management Plan

Mike Reilley, South Branch Township Supervisor, expressed concern about a private company having a monopoly in Wexford County.

Cal Caldwell, 1809 Sunnyside Drive, retired chemical engineer, said that he would like the landfill to remain a public entity and is against the sale.

Scott Conradson, 8932 Lamplighter Lane, who worked on the solid waste management plan, said that the landfill needs more volume and if the plan is not passed, rates will rise, sale or no sale.

Loretta Timlick, Manton resident, said that Scott Conradson works for the MDNRE and sits on the solid waste planning committee and thinks there is a conflict. Ms. Timlick does not think American Waste would be a good neighbor and is against the sale of the landfill.

Loretta DeJulian Snider, 1107 Sunset Lane, said she doesn't understand the dumping issue and wondered why we would want others garbage.

Rita McNamara, representative of C-5, a Cedar Creek citizens group, reminded council that Cedar Creek Township is home to the landfill. She hopes that other townships, municipalities and villages will look at their viewpoint with special attention before voting on the plan. They are the people in harms way. Ms. McNamara gave a PowerPoint presentation on what could happen if the plan is approved and that the C-5 group's view is that the county made

a deal with American Waste that does not benefit or represent the needs and interest of Wexford County citizens. She asked for a plan that would offer economic opportunities and access to low rates, with a clear financial roadmap, recognizing the community's needs. She urged the city to vote no on plan.

Mike MacCready, Manton resident, told council that flow control is not possible and that the approval of the solid waste management plan is crucial. He asked council to do the right thing and pass the amendment.

Bob Joseph, Wexford County financial consultant, told council that it is a complex problem and for the county to close the landfill would be a horrendous financial burden for its citizens. He said that flow control is only for a limited time and the plan is as good as it can get. He hopes the flow control issue is not a deal breaker.

Edward Ascione, co-owner of American Waste, told council that his company wants to be a good neighbor and the county has a 20-year rate guarantee. He also said they want to greatly increase recycling. He said that they have invested \$10 million dollars in a recycling facility in Grand Traverse County.

John Bennett, Cedar Creek Township resident, said the plan is not based on facts. Mr. Bennett said he is a neighbor of the landfill and that his property is in a risk zone. He said the landfill will now expand to possibly two hundred acres. He is against the plan amendment.

Vicki Garon with Golder Associates and consultant for American Waste explained flow control. She said the letter of intent is to ensure enforcement of flow control.

Les Housler, Board Chair of the Wexford County Board of Commissioners and resident of Colfax Township, told council that the numbers presented to council could be verified.

Bob Joseph, Wexford County financial consultant said that the big numbers come from the engineering firm CTI and the county books and encompass everything.

Steve Esling, Waste Management, said that his company made an offer to enter into an agreement with Wexford County which would have kept the landfill public.

Bob Joseph explained again how the dollar amounts were reached because there seemed to be some confusion about those amounts.

Rita McNamara questioned Bob Joseph on how he is certain that the rates would not rise. She doesn't see how the import expansion could cover the bond costs.

Mike Reilley asked the county and city to put those numbers in the newspaper.

Loretta Timlick said the plan that was submitted from American Waste could use all the land included in the letter of intent, which is 196 acres, without coming back to the county. The landfill currently uses 39 acres.

The public forum was closed.

INTRODUCTION OF ORDINANCES AND RESOLUTIONS

ADOPTION OF ORDINANCES AND RESOLUTIONS

REPORTS OF BOARDS AND COMMISSIONS

MINUTES OF BOARDS AND COMMISSIONS

The minutes of the Wexford County Airport Authority from the meetings held July 20 and August 17, 2010 were presented for information only.

APPOINTMENTS

PUBLIC APPEARANCES

Cal Caldwell, 1809 Sunnyside Drive, met with members of CAPS, CWTA and DTE. He said that he is looking forward to having a natural gas fueling station in the city sometime in the near future. Mr. Caldwell would like support from the city and that there would be no cost to the city.

Mike MacCready repeated his request for approval of the solid waste management plan amendment.

TABLED ITEMS

GOOD OF THE ORDER

Council Member Spoelman said that she appreciated having the public forum and she learned a lot. She said the subject is complex and she wants to do what's right for the citizens of Wexford County. She also said it is good to hear that American Waste is into recycling.

Council Member Schippers is concerned about creating public policy to sell to a private entity and she cautioned that expediency could put us in "hot water". This is a long term decision.

Mayor Barnett thanked the crew of TV 97 & 98, led by Don Murray and congratulated them winning the statewide Philo T. Farnsworth award. He said he wants council to consider curbside recycling at the October 18 work session. He then wished his mother Happy Birthday.

Council Member Stevens also wished the Mayor's mother Happy Birthday. He said he is also concerned about the deadline for the solid waste management plan. He would like a public hearing to provide data to the public.

Council Member Mellema said he is also concerned about the deadline. He then told council about his and Jerry Adams meeting with the Manton Chamber of Commerce on job creation.

City Manager Peccia congratulated the Downtown Cadillac Association on their successful Fall Fever Festival. He also said that he did not see a solid waste management plan deadline stated in the letter from Wexford County.

ADJOURNMENT

As there was no further business to come before the City Council, the meeting was adjourned at 10:03 p.m.

Respectfully submitted,

William S. Barnett, Mayor

Christine L. Benson, City Clerk

